

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR SEPTEMBER 4, 2026 AT 8:30 A.M.

13. S-CV-0051463 LINCOLN HILLS ADV ALLIANCE v. SUN CITY
LINCOLN HILLS COMM ASSO

This tentative ruling is issued by the **Honorable Angus Saint-Evens**. If oral argument is requested, it will be heard on **September 4, 2026 at 8:30 a.m. in Department 20**.

Motion for Stay

Defendant moves to stay trial court proceedings including enforcement of judgment pursuant to Code of Civil Procedure section 916. Plaintiff opposes the motion.

Plaintiff's request for judicial notice is granted.

Unless an enumerated exception applies, "the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) "Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: (1) Money or the payment of money," or (2) and (3) costs in certain instances. (Code Civ. Proc., § 917.1, subd. (a).) "A money judgment 'must be stated with certainty and should specify the amount.' [Citation.]" (*Estate of Kampen* (2011) 201 Cal.App.4th 971, 986.) Here, while the first amended complaint prays for relief including "all funds collected should be returned to the rightful owners that paid those funds," no specific dollar amount is prayed for and no dollar amount is included in the May 6, 2026 judgment. Accordingly, the exception in Code of Civil Procedure section 917.1 does not apply.

Plaintiff argues that Code of Civil Procedure section 917.2 applies, which provides enforcement of judgment is not stayed if the judgment "directs the assignment or delivery of personal property," as money is "personal property." However, the judgment does not include any findings that defendant holds these funds, only that it wrongfully took them. Accordingly, the exception in Code of Civil Procedure section 917.2 does not apply.

Plaintiff argues that Code of Civil Procedure section 917.9 applies, which provides enforcement of judgment is not stayed if the trial court in its discretion requires an undertaking and "(1) appellant was found to possess money or property belonging to

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respondent; [or] (2) appellant is required to perform an act for respondent's benefit pursuant to the judgment[.]" Here, however, the judgment pertains to the wrongful collection of fees from individuals who are not parties to this action, so it cannot be said that appellant was found to possess money belonging "to respondent" or that the judgment requires appellant to perform an act for "respondent's" benefit. Accordingly, the exception in Code of Civil Procedure section 917.9 does not apply.

Based on the foregoing, it appears to this court that the automatic stay of enforcement of judgment pursuant to Code of Civil Procedure section 916 is already in place without any applicable exception. The motion is, accordingly, granted.

The **review hearing scheduled for December 1, 2026 is hereby vacated** pending appeal.